

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Frank Montgoris	Team: Squad #07	CCRB Case #: 201507596	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/26/2015 3:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/26/2017	Precinct: 75		
Date/Time CV Reported Mon, 08/31/2015 10:45 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/08/2015 7:58 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 James Walsh	01303	935947	NARCBBN
2. SGT Eric Francis	01705	933784	NARCBBN
3. DT3 Fawad Khan	07739	925537	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 James Walsh	Abuse: Det. James Walsh entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Fawad Khan	Discourtesy: Det. Fawad Khan spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . DT3 Fawad Khan	Abuse: Det. Fawad Khan refused to provide his name and shield number to § 87(2)(b)	C . Unfounded
D . SGT Eric Francis	Abuse: Sgt. Eric Francis refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated
E . DT3 James Walsh	Abuse: Det. James Walsh failed to show a search warrant to § 87(2)(b)	E . Unsubstantiated
F . DT3 Fawad Khan	Abuse: Det. Fawad Khan failed to show a search warrant to § 87(2)(b)	F . Unsubstantiated

Case Summary

On August 26, 2015, at approximately 3:30 p.m., seven officers from Brooklyn North Narcotics executed a search warrant at § 87(2)(b) in Brooklyn (**Allegation A**). § 87(2)(b) and her daughter, § 87(2)(b) were both handcuffed. § 87(2)(b) asked for an explanation, but was allegedly told by Det. Fawad Khan, “Be quiet or you’re going to lose your fucking apartment” (**Allegation B**). During the search of her apartment, Det. Khan and Sgt. Eric Francis allegedly refused to provide their names and shield numbers to § 87(2)(b) (**Allegations C and D**). § 87(2)(b) asked to see the search warrant from Det. James Walsh and Det. Khan, but they allegedly refused to show her one (**Allegations E and F**). A summons was issued to § 87(2)(b) for § 87(2)(b).

§ 87(2)(g)
This case was reassigned from Investigator Alfredo Gonzalez to Investigator Frank Montgoris on September 22, 2015.

Mediation, Civil, and Criminal Histories

This case was unsuitable for mediation because § 87(2)(b) planned to file a lawsuit and had retained an attorney. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

As of October 28, 2015, neither § 87(2)(b) nor § 87(2)(b) had filed a Notice of Claim against the City of New York (Board Review 02).

Civilian and Officer CCRB Histories

- § 87(2)(b) was a witness to one prior CCRB complaint, § 87(2)(b)
- Det. Walsh has been a member of the NYPD for 11 years. Det. Walsh has been the subject of seven allegations stemming from five cases. In CCRB Case #201207181, one search of a person allegation was substantiated against him. § 87(2)(g)
- Det. Khan has been a member of the NYPD for 15 years. Det. Khan has been the subject of 15 allegations stemming from nine cases. There have been no substantiated allegations against Det. Khan § 87(2)(g)
- Sgt. Francis has been a member of the NYPD for 11 years. Sgt. Francis has been the subject of nine allegations stemming from eight cases. In CCRB Case #201501960, one entry and search allegation was substantiated against him. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- During her CCRB statement, § 87(2)(b) identified Det. Walsh by his rank and last name, and described him as a 5’7” tall bald man with a muscular build, a red goatee, blue eyes, and who appeared to be in his early to mid-40s (Board Review 04). According to his pedigree sheet, Det. Walsh is a § 87(2)(b), bald white man (Board Review 05). § 87(2)(b) also provided a copy of the summons that was issued

to her by Det. Walsh (Board Review 06). § 87(2)(g)

- § 87(2)(b) alleged that the officer who spoke discourteously to her and refused to provide his name and shield, was a 5'10" tall, husky Persian man with black hair, a goatee, and who appeared to be in his mid-30s to early 40s (Board Review 04). During his CCRB statement, Det. Walsh identified this officer as Det. Khan (Board Review 08), who, according to his pedigree sheet, matches the description provided by § 87(2)(b) (Board Review 09), and who was present at the scene, according to the Search Warrant Pre-Execution Plan (Board Review 10). § 87(2)(g)
- § 87(2)(b) alleged that the second officer who refused to provide his name and shield was a 6' tall, muscular white man with a bald head, no facial hair, and who appeared to be about 40 years old. § 87(2)(b) alleged that this officer told her that he was Det. Khan's supervisor (Board Review 04). Sgt. Francis, who, based on his pedigree sheet, matches the description provided by § 87(2)(b) (Board Review 11), and was present at the scene, according to the Search Warrant Pre-Execution Plan (Board Review 10). Sgt. Francis was also identified by Det. Khan in his CCRB statement as being one of his direct supervisors on scene (Board Review 12). § 87(2)(g)

Allegation A – Abuse of Authority: Det. James Walsh entered and searched § 87(2)(b), in Brooklyn.

It is undisputed that officers entered and searched § 87(2)(b), in Brooklyn. The investigation obtained a copy of Search Warrant § 87(2)(b), issued by the Criminal Court of the City of New York, which judicially ordered officers to enter the location and search for narcotics without first announcing their presence (Board Review 07).

A search warrant issued by a New York City Criminal Court may be executed pursuant to its terms. Criminal Procedure Law, Section 690.50 (Board Review 13).

§ 87(2)(g)

, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Discourtesy: Det. Fawad Khan spoke discourteously to § 87(2)(b)

§ 87(2)(g)

In her initial phone statement, § 87(2)(b) did not allege that any discourteous language was used against her. However, in her in-person statement, § 87(2)(b) alleged that an officer, who was identified via investigation as Det. Khan, told her "Shut up. You know what this is about. Be quiet or you're going to lose your fucking apartment" (Board Review 04).

§ 87(2)(b) alleged that an officer, matching the description of Det. Khan, said to § 87(2)(b) "Shut the fuck up." (Board Review 14)

Det. Khan denied saying either of these phrases to § 87(2)(b) and denied hearing any other officer do so (Board Review 12). Both Det. Walsh and Sgt. Francis denied hearing Det. Khan or any other officer say either of these phrases to § 87(2)(b) (Board Reviews 08 and 15).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: Det. Fawad Khan refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that the same officer who spoke discourteously to her, also refused to provide his name and shield number to her (Board Review 04). § 87(2)(b) stated in her in-person statement that, at some point during the incident, the same officer who spoke discourteously towards § 87(2)(b) did provide his name and shield number to § 87(2)(b) although she could not recall whether § 87(2)(b) ever requested this officer's name and shield number (Board Review 14).

Det. Khan stated § 87(2)(b) did ask him for his name and shield number, and that he provided his name and shield number to her (Board Review 12). Neither Det. Walsh nor Sgt. Francis heard § 87(2)(b) make any requests for names or shield numbers from any officers, and neither officer heard anybody refuse to provide this information at any point to § 87(2)(b) (Board Reviews 08 and 15).

§ 87(2)(g)

Therefore it is recommended that **Allegation C** be closed as **unfounded**.

Allegation D – Abuse of Authority: Sgt. Eric Francis refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that, aside from Det. Khan, an officer who matched the description of Sgt. Francis, also refused to provide his name and shield number to her (Board Review 04). § 87(2)(b) provided no testimony regarding this allegation (Board Review 14).

Sgt. Francis denied ever being asked for his name and shield number by § 87(2)(b) and denied hearing any other officer refuse to provide this information (Board Review 15). Although Det. Khan was asked for his name and shield number, as mentioned before, he denied hearing § 87(2)(b) ask any other officer to provide their names and shield numbers (Board Review 12). As previously discussed, Det. Walsh denied hearing § 87(2)(b) make any requests for names and shield numbers from any officers (Board Review 08).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Abuse of Authority: Det. James Walsh failed to show a search warrant to

§ 87(2)(b)

Allegation F – Abuse of Authority: Det. Fawad Khan failed to show a search warrant to

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that she asked an officer, identified as Det. Khan, to see a warrant, and that he had told her that the officers did not need to provide a warrant to her. In addition, § 87(2)(b) alleged that she asked for a warrant a second time, and the officer who identified himself as Det. Walsh had informed § 87(2)(b) that she would receive a copy of the warrant after the search was conducted, but failed to provide her with one before they left (Board Review 04). § 87(2)(b) stated that she did not see any officer present a warrant to § 87(2)(b) but could not recall whether her mother had ever asked for one (Board Review 14).

Both Det. Khan and Det. Walsh denied ever being asked to provide a warrant, and both officers denied hearing § 87(2)(b) ask any other officer for a warrant (Board Reviews 08 and 12). Sgt. Francis denied hearing § 87(2)(b) ask for a warrant, and denied hearing any officer refuse to show § 87(2)(b) a warrant (Board Review 15).

§ 87(2)(g)

Therefore, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.

Squad 7:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date